EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

# THIRD SECTION

# DECISION

Application no. 26805/15
Larisa Viktorovna ZAKHAROVA
against Russia

The European Court of Human Rights (Third Section), sitting on 6 October 2022 as a Committee composed of:

Darian Pavli*, President,*
Andreas Zünd*,*
Frédéric Krenc*, judges,*

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 12 May 2015,

Having deliberated, decides as follows:

## FACTS AND PROCEDURE

The applicant, Ms Larisa Viktorovna Zakharova, was born in 1967. She was represented by Mr R.Y. Kachanov, a lawyer practising in Yekaterinburg.

The applicant's complaints under Articles 10 and 11 of the Convention concerning an allegedly unjustified interference with her freedom of expression and freedom of peaceful assembly were communicated to the Russian Government ("the Government"). By letter dated 5 October 2021 the Registry invited the parties to explore the possibilities for a friendly settlement. On 16 November 2021 the applicant's representative sent a letter through the Court's Electronic Communications Service (eComms) informing the Court of the applicant's intention to conclude friendly settlement agreement and setting out her proposal. However, the Government declined that proposal.

On 21 February 2022 the Government submitted observations on the admissibility and merits of the application. The observations were forwarded to the applicant's representative through eComms inviting him to submit the observations on behalf of the applicant. No reply was received to the Registry's letter although both the letter and its annexes on the eComms

system were downloaded. Other Registry's letters, including those informing the applicant's representative of the third-party intervention, were also opened by him on the eComms platform.

By letter dated 3 May 2022, sent through eComms, the applicant's representative was notified that the period allowed for submission of the observations on the applicant's behalf had expired on 12 April 2022 and that no extension of time had been requested. The attention of the applicant's representative was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike an application out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. No response has been received to this letter.

## THE LAW

In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention and the Protocols thereto, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the application.

Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

*Decides* to strike the application out of its list of cases.

Done in English and notified in writing on 27 October 2022.

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| Viktoriya Maradudina | Darian Pavli |
| Acting Deputy Registrar | President |